

What information would trigger a supplemental EIS?

Executive Summary:

NEPA requires a supplemental EIS when there is a substantial change to information or circumstances, but what constitutes “significant” is often cause for debate. Guidelines and precedents from other cases generally categorize significant change as information that was not evaluated in the original EIS, which many groups argue would include the change of transporting the waste as a liquid instead of a solid. Additionally, the age of the original EIS and an increase in the scope of the project are common factors. Precedent from the Yucca Mountain project also shows that the change in transportation type was significant enough to require a supplemental EIS.

Background information:

NEPA requires that all federal agencies prepare detailed statements assessing the environmental impact of “major federal actions significantly affecting the environment” (United States Congress, 1969). A supplement to a draft or final EIS is required when

- The agency **makes substantial changes to the proposed action** that are relevant to the environmental concerns or
- When there are **substantial new circumstances or information** that affect the analysis of the environmental impact (US EPA, 2026)

However, a supplemental EIS is not necessary when the changes to the proposed action, new information or circumstances does not change the environmental impact (Cornell Law School, n.d.). US DOE claims that the initial EIS is sufficient for analyzing the transport of radioactive waste even though the initial EIS focused primarily on transporting solid waste (Heart of America Northwest, 2025). The State of Oregon, The Confederated Tribes of the Umatilla Indian Reservation and advocacy groups such as Heart of America have submitted comments highlighting the need for a supplemental EIS given the change to favoring the transportation of waste in liquid form (Barnett, 2024).

What constitutes significant new science, technology or circumstances that might

trigger a requirement to update /supplement a prior EIS on transporting radioactive wastes?

- The National Environmental Policy Act of 1969 does not define “significant” (United States Congress, 1969), but the new information or circumstances must have significant environmental impact **not evaluated in the original EIS** (U.S. Department of Energy, Environment, Safety and Health, Office of NEPA Policy and Compliance, 2005). However, this leaves some area for agencies to recognize new information but declare that its impact is not significant enough.
- U.S. Department of Energy, Office of NEPA Policy and Compliance notes that as a rule of thumb, **EISs that are more than 5 years old should be carefully examined** to determine if a supplemental EIS is necessary due to **outdated information** (2005). It should be noted that the original EIS for the removal of waste from Hanford was completed in 1996. (U.S. Department of Energy, 1996).
- US DOE did not address route specific hazards in their supplemental analysis (SA) (U.S. Department of Energy, 2025) but the **State of Oregon and Heart of America have both called for a route specific analysis** since there are individual circumstances along each route, such as how the expected train route through Oregon runs along the Deschutes River (Kotek, 2025).
- Oregon also argues that prior analyses for transportation are inadequate and don’t take into account the **change in format of the waste** since US DOE initially focused on transporting solid waste, but their current plan is to transport liquid which are “significant new potential circumstances and information not previously analyzed in any NEPA document” (Kotek, 2025)
- A large increase in scale of a project is typically considered significant, and Oregon argues that the **14,000-fold increase** from the 2,000 gallon test-shipment in 2023 to the total liquid volume needing transport is significant (Kotek, 2025)

Precedent from another radioactive waste transportation project that required a supplemental EIS:

Yucca Mountain: In 2008, US DOE completed a supplemental EIS for the disposal of high-level nuclear waste at Yucca Mountain in Nevada. The

initial EIS listed trucks as the primary transportation method, but US DOE decided to rely mostly on train transport instead and also needed to build almost 300 miles of track to connect the site to existing rail lines so it was deemed a significant enough change to **trigger a supplemental EIS that looked at the impacts of the updated transportation method** as well as the **specific route** that the train would take (U.S. Department of Energy, 2008).

Recommendation:

In accordance with the public comments discussed above, the change to liquid transport, the vast increase in the amount of waste being transported, and the circumstances of the specific routes should all qualify as significant information or change in circumstances to trigger the need for a supplemental EIS.

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